



# Tangible Employment Action Harassment

## Overview

There are two types of discriminatory harassment that can be perpetrated by supervisors: harassment that creates a hostile work environment at harassment that includes a tangible employment action. This Quick Start Guide focuses on the latter. The U.S. Supreme Court differentiated the types of harassment in order to provide a framework for assessing cases and assigning liability. A tangible employment action is a significant change in employment status, such as firing, demotion, an undesirable reassignment, or the denial of a promotion. Because only superiors are in positions to make these types of decisions, tangible employment action harassment can only be carried out by individuals in supervisory position.

This Quick Start Guide covers the following Key Points:

1. [Defining 'tangible employment action'](#)
2. [Defining supervisor](#)
3. [Assessing liability](#)
4. [Case examples](#)
5. [Relationship to quid pro quo harassment](#)

## Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

### Defining 'tangible employment action'

- A "tangible employment action" means a "significant change in employment status" that requires an "official act" of the employer. Example of tangible employment actions include hiring and firing, failure to promote, demotion, reassignment with significantly different responsibilities, a compensation decision, and a decision causing a significant change in benefits. In some cases, a decision may constitute a tangible employment action even though it does not have immediate direct or economic consequences, such as a demotion with a substantial reduction in job responsibilities but without a loss in pay. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- A tangible employment action may occur at any time during the course of the hostile work environment and need not occur at the end of employment or serve as the culmination of the harassing conduct. For example, if a supervisor subjects an employee to a hostile work environment by making frequent sexual comments and denying pay increases because the employee rejects the sexual advances, then the employer is liable for the hostile work environment created by the supervisor and there is no defense. This is true even though the supervisor's tangible employment action, here denial of pay increases, did not occur at the end of the employee's employment. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- An unfulfilled threat to take a tangible employment action does not itself constitute a tangible employment action, but it may contribute to a hostile work environment. By contrast, fulfilling a threat of a tangible employment action because a complainant rejects sexual demands (e.g., denying a promotion) constitutes a tangible employment action. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- Fulfilling a promise to provide a benefit because the complainant submits to sexual demands (e.g., granting a promotion or not terminating the complainant after the complainant submits to sexual demands) constitutes a tangible employment action. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- **Hadley:** The term "tangible employment action" encompasses a wide range of actions the employer can take, with the emphasis being on whether the action constitutes a significant change in the employee's status with the employer. As a result, the term is not nearly as restrictive as the term "adverse action" when applied to MSPB jurisdiction. However, the term is not so broad as to encompass all actions that an employer can take. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Tangible Employment Action](#).

### Defining supervisor

- An employee is a supervisor for purposes of Title VII vicarious employer liability only if empowered by the employer to take tangible employment actions against the victim. *Vance v. Ball State University*, [113 LRP 26073](#), 133 S. Ct. 2434 (2013), *aff'd* 618 F.3d 461 (7th Cir. 2011).
- In the context of employer liability for a hostile work environment, an employee is considered a "supervisor" if the individual is "empowered by the employer to take tangible employment actions against the victim." An employee may, of course, have more than one supervisor. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- On rare occasions, the EEOC has applied the "alter ego" theory, a legal doctrine that allows an employer to be held liable for unlawful harassment of an employee when the harasser is not in the target employee's direct line of supervision but is of sufficiently high rank to be treated as the organization's proxy. See, for example, *Anne G. v. Department of Veterans Affairs*, [123 LRP 6603](#), EEOC No. 2022003036 (EEOC OFO 2023).

### Assessing liability

- An employer is always liable if a supervisor's harassment creates a hostile work environment that includes a tangible employment action. [EEOC Enforcement Guidance on Harassment in the Workplace](#).

- If the victim of unlawful harassment is the subject of a "tangible employment action," the agency has no defense to liability or damages. *Burlington Industries, Inc. v. Ellerth*, [98 FEOR 9003](#), 118 S. Ct. 2257 (1998); *Faragher v. City of Boca Raton*, [98 FEOR 9002](#), 118 S. Ct. 2275 (1998).
- **Hadley:** Because tangible employment action harassment involves the granting or denial of an employment benefit or the taking of some personnel action, application of the doctrine is restricted of necessity, to supervisors and managers. A complainant is not required to show agency knowledge of the harassment. *Hadley Guide to Federal Sector Equal Employment Law and Practice: Knowledge of Agency*.

### Case examples

- A nurse practitioner was subjected to harassment based on his disability and EEO activity when the agency revoked his telework privilege assigned him a disproportionately high patient load, and assigned him to COVID-19 screening duties in spite of his documented health risk. The agency was liable because the hostile work environment was created by a supervisor and included tangible employment actions. *Jaime C. v. Department of Veterans Affairs, Veterans Health Administration*, [123 LRP 17223](#), EEOC No. 2022003169 (EEOC OFO 2023).
- The complainant, an administrative manager for the Bureau of the Census, was subjected to a hostile work environment based on her race (African American) and prior EEO activity, in part when a manager and regional technician publicly humiliated her to an extent that it brought her to tears, and when the manager issued her a disciplinary memorandum for leaving work after saying she would not, unfairly reprimanded her, and terminated her. Because the harassment included a tangible employment action, the agency could not avoid liability. *Stella K. Department of Commerce, Bureau of the Census*, [123 LRP 32426](#), EEOC No. 2022002059 (EEOC OFO 2023).
- The complainant, a contractor who worked for the Department of State as a systems administrator, was subjected to harassment when the agency targeted him with heightened scrutiny and removal efforts based on his disabilities (narcolepsy, colon cancer) and request for reasonable accommodation, transferred him with continued scrutiny, and then removed him. The agency could not raise an affirmative defense. *Wes L. v. Department of State*, [123 LRP 16397](#), EEOC No. 2021005122 (EEOC OFO 2023).
- An HR specialist for the National Park Service was subjected to a sex-based hostile work environment when a supervisor made comment about his sexual orientation in a chat with a coworker, was condescending to him in emails, and excluded him in the office. The EEOC found the agency could not avoid liability for the harassment because it led to a tangible employment action when the supervisor changed the terms and conditions of the specialist's employment by strictly controlling such things as his break and lunch times, telling him which door he was allowed to use, and requiring him to notify the supervisor any time that he was leaving his workspace. *Nathaniel E. v. Department of the Interior, National Park Service*, [122 LRP 4454](#), EEOC No. 2021000613 (EEOC OFO 2022).
- A supervisor for the U.S. Postal Service was subjected to sexual harassment by her manager, who made repeated sexual advances toward her that included remarks of a sexual nature or containing sexual innuendo, as well as contacting her outside of work and asking her to go on a date or to come to his house. The agency could not avoid liability because the harassment led to a tangible employment action when the manager cancelled the supervisor's detail in retaliation for her complaining about his conduct. *Lelah T. v. U.S. Postal Service*, [118 LRP 47204](#), EEOC No. 0120172533 (EEOC OFO 2018).
- An IRS revenue officer with diabetes was harassed by her supervisor, who failed to provide her with an effective accommodation, negatively impacting her health and forcing her to take leave. The supervisor also disciplined her for texting during a meeting when she was actually adjusting her insulin pump. Because the supervisor's actions culminated in tangible employment actions, the agency could not avoid liability for the hostile work environment created by the supervisor. *Denese G. v. Department of the Treasury, Internal Revenue Service*, [117 LRP 987](#), EEOC No. 0120141118 (EEOC OFO 2016).
- A security specialist for the Federal Bureau of Investigation was subjected to a hostile work environment based on her disabilities (cerebral palsy, thyroid disease, fibromyalgia, and osteoarthritis) and prior EEO activity when the agency denied her reasonable accommodation, placed her on performance improvement plans, and terminated her. The agency was liable for the harassment because it culminated in a tangible employment action. *Complainant v. Department of Justice, Federal Bureau of Investigation*, [0120121339](#), [115 LRP 22056](#) (EEOC OFO 2015).
- The complainant, a human resources assistant who informed her supervisor that she was pregnant on her first day of work, was subjected to a pregnancy-based hostile work environment. Her supervisor denied her leave requests, threatened her with termination on her first day, falsely accused her of misconduct, coerced a coworker to write a statement against her, and deactivated her email account. Because the harassment culminated in the complainant's termination, the agency could not avoid liability. *Kiera H. v. Department of the Air Force*, [115 LRP 9438](#), EEOC No. 0520140092 (EEOC OFO 2015).
- A rural carrier for the Postal Service was subjected to a hostile work environment based on her disability. Her medical restrictions limited her to driving only vehicles with a right-hand driver's position, but her supervisor advised her to violate her restrictions. Even though she advised the supervisor that it would be unsafe for her to deliver mail in a left-hand drive vehicle, he refused to allow her to take leave as she requested. Because the supervisor's actions culminated in a tangible employment action, the agency was liable for the harassment. *Complainant v. U.S. Postal Service*, [0120112858](#), [114 LRP 34358](#) (EEOC OFO 2014).
- A program and management analyst for the Department of Education was subjected to sexual harassment by a supervisor who put his arm around her shoulders and waist when greeting her. Because the analyst was transferred in response to her claim that she was being harassed, the EEOC found the agency could not avoid liability. *Moore v. Department of Education*, [113 LRP 36535](#), EEOC No. 0120111258 (EEOC OFO 2013).
- The complainant, a bulk mail technician for the U.S. Postal Service, was subjected to a hostile work environment by her supervisor on the basis of her race (African-American), religion (Jehovah's Witness), and age (46). The agency could not avoid liability because the harassment culminated in a tangible employment action -- a seven-day suspension. *Foster v. U.S. Postal Service*, [112 LRP 39035](#), EEOC No. 0120100725 (EEOC OFO 2012).
- A food service worker was subjected to sexual harassment by a supervisor who asked her for a date. The agency was liable for the harassment because the worker was terminated after rejecting the request. *Greene v. Department of Veterans Affairs*, [111 LRP 58700](#), EEOC No. 0120090106 (EEOC OFO 2011).

- The complainant was subjected to a hostile work environment in reprisal for his EEO activity after he requested a reasonable accommodation for his disability. In part, he was singled out for increased scrutiny, issued six letters of warning, suspended, and denied leave on numerous occasions. Because the harassment culminated in tangible employment actions, the agency could not raise an affirmative defense. *Cahn v. U.S. Postal Service*, [108 LRP 51933](#), EEOC No. 0720060029 (EEOC OFO 2008).
- The agency was liable for national origin-based harassment that exacerbated the complainant's depression and ultimately resulted in his termination. The agency could not avoid liability because a supervisor engaged in harassment that resulted in a tangible employment action -- the complainant's removal. *Arcinue v. Department of the Navy*, [108 LRP 24668](#), EEOC No. 0520051034 (EEOC OFO 2008).
- The complainant prevailed on her claim that she was subjected to sexual harassment by a supervisor, who issued her a letter of warning and a letter of removal soon after learning that she sought EEO counseling about his misconduct. The agency could not avoid liability because the harassment culminated in tangible employment actions that were unwarranted under the circumstances. *Smalls v. U.S. Postal Service*, [107 LRP 19888](#), EEOC No. 0120053018 (EEOC OFO 2007).
- Because the offending supervisor subjected the complainant to a tangible employment action -- reassignment -- after she rejected his sexual advances, the agency had no defense to liability for sexual harassment. The complainant was awarded \$30,000 in nonpecuniary compensatory damages. *Riley v. U.S. Postal Service*, [103 LRP 36454](#), EEOC No. 07A30004 (EEOC OFO 2003).
- The agency could not raise an affirmative defense to the complainant's claim of sexual harassment because her rejection of a postmaster sexual advances led to a tangible employment action -- her termination. *Gowan v. U.S. Postal Service*, [102 LRP 19833](#), EEOC No. 01996261 (EEOC OFO 2002).
- The complainant's supervisor retaliated against the complainant by putting her "under a microscope, severely restricting her day-to-day activities, subjecting her to extremely close scrutiny, documenting every late arrival down to the minute, and causing her to experience severe stress" from being humiliated in front of her coworkers. The EEOC found the supervisor's conduct constituted tangible employment actions and that the agency could not raise an affirmative defense to liability. *Winston v. Department of Health and Human Services*, [101 FEOR 30287](#), EEOC No. 01985752 (EEOC OFO 2000).

### Relationship to quid pro quo harassment

- At one time, courts and the EEOC analyzed cases as either quid pro quo harassment or hostile work environment. Quid pro quo is harassment that conditions concrete employment benefits on the receipt of sexual favors. See *Van Druff v. Department of Defense, Defense Contract Audit Agency*, [99 FEOR 3228](#), EEOC No. 01962398 (EEOC 1999).
- "We note that in the context of supervisory liability, the Supreme Court and the Commission have moved away from the commonly used categories of 'quid pro quo' and hostile work environment harassment, finding it more useful analytically to distinguish between harassment that results in a tangible employment action and harassment that creates a hostile work environment." *Johnson v. Department of Homeland Security, Transportation Security Administration*, [108 LRP 35593](#), EEOC No. 0120063577 (EEOC OFO 2008), citing *Burlington Industries, Inc. v. Ellerth*, [98 FEOR 9003](#), 118 S. Ct. 2257 (1998); *Faragher v. City of Boca Raton*, [98 FEOR 9002](#), 118 S. Ct. 2275 (1998).

### Other Resources

- [EEOC Enforcement Guidance on Harassment in the Workplace](#)
- [Policy and Guidance -- Model EEO Programs Must Have An Effective Antiharassment Program](#)
- [Quick Start Guide: Hostile Work Environment](#)
- [Quick Start Guide: Sexual Harassment -- EEO](#)
- [Quick Start Guide: Vicarious Liability for Supervisory Harassment](#)
- [EEOC's Select Task Force Report on the Study of Harassment in the Workplace](#)
- For more guidance, see:
  - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 12 -- Theories of Discrimination -- Hostile Environment, Subchapter 01 -- Tangible Employment Action -- Sexual Harassment, Section B -- Elements of Claim, Subsection 06 -- Knowledge of Agency](#)
  - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 12 -- Theories of Discrimination -- Hostile Environment, Subchapter 01 -- Tangible Employment Action: Sexual Harassment, Section A -- Definitions, Subsection 01 -- Tangible Employment Action](#)
  - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 12 -- Theories of Discrimination -- Hostile Environment, Subchapter 01 -- Tangible Employment Action -- Sexual Harassment, Section A -- Definitions, Subsection 02 -- Supervisors](#)

Please share your experience and expertise. Forward any suggested additions or changes to this or other Quick Start Guides to [QSGeditor@lrp.com](mailto:QSGeditor@lrp.com).



© LRP Publications. All Rights Reserved.